



General Assembly

Substitute Bill No. 5510

February Session, 2026



AN ACT CONCERNING THE DEPARTMENT OF PUBLIC HEALTH'S RECOMMENDATIONS REGARDING UNLICENSED INSTITUTIONS AND PRACTICES.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 19a-502 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) Any person establishing, conducting, managing or operating any
4 institution without the license required under the provisions of [sections
5 19a-490 to 19a-503, inclusive, or owning real property or improvements
6 upon or within which such an institution is established, conducted,
7 managed or operated,] this chapter or without the certificate required
8 under the provisions of section [19a-491, shall be fined not more than
9 one hundred dollars for each offense, and each day of a continuing
10 violation after conviction shall be considered a separate offense] 19a-561
11 shall be guilty of a class D felony and fined not more than five thousand
12 dollars for each day of continuing action in violation of this chapter or
13 section 19a-561.

14 (b) Any person owning real property or improvements upon or
15 within which an institution is established, conducted, managed or
16 operated without the license required under this chapter or without the
17 certificate required under section 19a-561 shall be fined not more than

18 one hundred dollars for each offense and each day of a continuing
19 violation after conviction shall be considered a separate offense.

20 (c) The penalty provisions of this [subsection] section shall not apply
21 to (1) any financial institution regulated by any state or federal agency
22 or body, which financial institution has succeeded to the title of the
23 premises by mortgage foreclosure and the operator, if any, continues to
24 occupy such property, or (2) a person's failure to apply for a renewal of
25 a license.

26 [(b)] (d) If any person conducting, managing or operating any
27 nursing home facility, as defined in section 19a-521, or residential care
28 home, as defined in section 19a-521, fails to maintain or make available
29 the financial information, data or records required under subsection (d)
30 of section 19a-498, such person's license as a nursing home facility or
31 residential care home administrator may be revoked or suspended in
32 accordance with section 19a-517 or the license of such nursing home
33 facility or residential care home may be revoked or suspended in the
34 manner provided in section 19a-494, or both.

35 Sec. 2. Section 19a-503 of the general statutes is repealed and the
36 following is substituted in lieu thereof (*Effective October 1, 2026*):

37 (a) Notwithstanding the existence or pursuit of any other remedy, the
38 Department of Public Health may, in the manner provided by law and
39 upon the advice of the Attorney General, conduct an investigation and
40 maintain an action in the name of the state for injunction or other
41 process against any person or governmental unit to restrain or prevent
42 the establishment, conduct, management or operation of an institution
43 or nursing facility management services, without a license or certificate
44 under this chapter.

45 (b) The commissioner may, after a hearing held in accordance with
46 chapter 54, impose a civil penalty on any person establishing,
47 conducting, managing or operating any institution without the license
48 required under this chapter or without the certificate required under
49 section 19a-561. The amount of any such civil penalty shall not exceed

50 twenty-five thousand dollars for each day such person is in violation of
51 this chapter or section 19a-561.

52 Sec. 3. Section 19a-11 of the general statutes is repealed and the
53 following is substituted in lieu thereof (*Effective October 1, 2026*):

54 Any board or commission listed in subsection (b) of section 19a-14 or
55 the Department of Public Health, with respect to professions under its
56 jurisdiction that have no board or commission, may, in its discretion,
57 issue [an appropriate] a summary order to any person found to be
58 violating an applicable statute or regulation, providing for the
59 immediate discontinuance of the violation that poses an imminent risk
60 to public health, safety or welfare, pending proceedings to determine
61 whether to issue a cease and desist order. Such board or commission or
62 the department, with respect to professions under its jurisdiction that
63 have no board or commission, may, after a hearing held in accordance
64 with chapter 54, impose a civil penalty not to exceed twenty-five
65 thousand dollars on a person who provides professional services under
66 the department's jurisdiction without a license or certificate issued by
67 the department. For the purposes of this section, each day of the
68 provision of any such services shall be grounds for such a penalty. The
69 board or commission may, through the Attorney General, petition the
70 superior court for the judicial district wherein the violation occurred, or
71 wherein the person committing the violation resides or transacts
72 business, for the enforcement of any order issued by it and for
73 appropriate temporary relief or a restraining order. Such board or
74 commission shall certify and file in such court a transcript of the entire
75 record of the hearing or hearings, including all testimony upon which
76 such order was made and the findings and orders made by such board
77 or commission. The court may grant such relief by injunction or
78 otherwise, including temporary relief, as it deems equitable and may
79 make and enter a decree enforcing, modifying and enforcing as so
80 modified, or setting aside, in whole or in part, any order of the board or
81 commission.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>October 1, 2026</i>	19a-502
Sec. 2	<i>October 1, 2026</i>	19a-503
Sec. 3	<i>October 1, 2026</i>	19a-11

Statement of Legislative Commissioners:

In Section 3, "In addition to a cease and desist order, such board or commission or the department may, after a hearing held in accordance with chapter 54, impose a civil penalty not to exceed twenty-five thousand dollars for the provision of services without a license or certificate in violation of the provisions of this title." was changed to "Such board or commission or the department, with respect to professions under its jurisdiction that have no board or commission, may, after a hearing held in accordance with chapter 54, impose a civil penalty not to exceed twenty-five thousand dollars on a person who provides professional services under the department's jurisdiction without a license or certificate issued by the department." for clarity and accuracy.

PH *Joint Favorable Subst.*